

Hari Lal v. District Magistrate, Azamgarh

High Court of Judicature at Allahabad · Division Bench · 15 July 2021 · Writ-C No. 12303 of 2021 · **Writ dismissed; relegated to statutory Supply Code appeal.**

HEADNOTE

A writ seeking to quash a recovery certificate dated 10 August 2020 and an order dated 4 February 2021, and to restrain coercive recovery, was dismissed because that order was a final order under Clause 6.8(d)(i) of the U.P. Electricity Supply Code, 2005, for which a statutory appeal lay. The High Court allowed two weeks to file the appeal and directed that it be decided expeditiously without objection if so filed.

FACTUAL SUMMARY

Hari Lal sought certiorari to quash a recovery certificate dated 10 August 2020 and an order dated 4 February 2021 of respondent no.3, and a mandamus against coercive recovery as arrears of land revenue or by arrest. On 23 June 2021 his counsel was not on the video link; the petition was listed as fresh for 15 July 2021 with instructions to be obtained. At the adjourned hearing the respondent-corporation treated the 4 February 2021 order as a Supply Code final order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(d)(i)

final order and statutory appeal

HOLDING

An order of the licensee under Clause 6.8(d)(i) of the U.P. Electricity Supply Code, 2005 is a final order. A writ petition seeking to quash that order and the consequential recovery certificate, and to restrain coercive recovery as arrears of land revenue or by arrest, is not maintainable when a statutory appeal is available. The petition was dismissed on the ground of alternative remedy, with liberty to file the appeal within two weeks, to be decided expeditiously without objection. ¶ 2-3

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court accepted that the 4 February 2021 order was a final order under Clause 6.8(d)(i) carrying a statutory appeal, dismissed the writ on that alternative remedy, and protected a two-week filing window. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 10.08.2020 AND THE ORDER DATED 04.02.2021

The Court did not examine the merits of either instrument, dismissing solely on alternative remedy. ¶ 3